IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON TUESDAY, THE 26TH DAY OF AUGUST, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

SUIT NO. C2/29/2024

SANDRA SELASIE ZOWONOO ---------- PLAINTIFF
HOUSE NUMBER B/WE 21
COMMUNITY 12
TEMA

VRS

PEARL DADZIE ---------- DEFENDANT
TRADING UNDER THE NAME
AND STYLE, INDULGING SERVICES
ACHIMOTA

PARTIES: PLAINTIFF ABSENT
DEFENDANT PRESENT

COUNSEL: GODWIN SELASI DAKPO, ESQ. FOR THE PLAINTIFF PRESENT
JACOB DICKSON BANI, ESQ. FOR THE DEFENDANT ABSENT

JUDGMENT

FACTS

By a Writ of Summons issued from the Registry of this Court on the 13th day of June 2024 the Plaintiff claims against the Defendant the following reliefs:

i. An order for recovery of Twenty-One Thousand Six Hundred Ghana Cedis (GHS 21,600.00) being total monthly car rental fees due and payable to the Plaintiff from August 2019 to October 2021;

ii. An order for recovery of Two Thousand One Hundred and Sixty Ghana Cedis (GHS 2,160.00) being the accrued penalty for delay payment of monthly car rental fees due and payable to the Plaintiff from August 2019 to October 2021;

iii. An order for recovery of Five Thousand Seven Hundred Ghana Cedis (GHS 5,720.00) being money due and payable to the Plaintiff for decoration services Plaintiff provided to Defendant for the Workaholics Night event on April 30, 2019.

iv. An order for payment of Three Thousand Ghana Cedis (GHS 3,000.00) being money due and payable to the Plaintiff for cost of repair and maintenance of the Vehicle due to the Defendants' negligent use of the Vehicle contrary to the Agreement between the Parties;

v. An order for payment of interest on the sum in (i), (i), (iii) and (iv) above at the prevailing commercial bank interest rate;

vi. Damages in the sum of Seventy Thousand Ghana Cedis (GHS 70,000.00) for unlawful detention of the vehicle from January 2, 2020, to October 31, 2021;

vii. Aggravated damages in the sum of Forty-five Thousand Ghana Cedis (GHS 45,000.00) for psychological and emotional distress, and efforts employed at tracing the Vehicle;

viii. An order for general damages for breach of contract;

ix. Costs including Solicitor's fees assessed at 15% of the total amount due Plaintiff as per the GBA scale of fees;

x. Any other relief(s) this Honourable Court may deem fit.

By an affidavit of posting dated 31st July 2024 deposed to by one Benjamin Sunu, a private bailiff attached to this Court, the Writ of Summons and Statement of Claim as well as an order of the Court for substituted service were served on the Defendant by substitution.

On 13th August 2024, the Defendant entered appearance through her Lawyer on record. However, the Defendant failed to file a Statement of Defence as provided by the Rules of this Court.

This Court on the 30th day of September 2024 heard a motion on notice for leave to enter summary judgment against the Defendant, filed by Counsel for the Plaintiff herein on 26th August 2024. The Court upon hearing the application and further relying on ***Order 14 rule 1 of the High Court (Civil Procedure) Rules, 2004 (C.I. 47***), entered summary judgment in favour of the Plaintiff as against the Defendant on reliefs (i), (ii), (iii), (iv) and (v) as endorsed on the Writ of Summons filed on 13th June 2024. The Court thereafter ordered the Plaintiff to file her Witness Statement for a hearing on reliefs (vi), (vii) and (viii) on the said Writ of Summons.

A cost of GHS 3,000.00 was awarded in favour of the Plaintiff as against the Defendant.

The Plaintiff subsequently filed her Witness Statement and served a copy on the Defendant together with a hearing notice. On the day the Court commenced the hearing on the outstanding reliefs of the Plaintiff, the Defendant was absent however, Counsel for the Defendant was present in Court and was given the opportunity to cross examine the Plaintiff on her evidence in chief. Counsel for the Defendant in the course of the cross examination of the Plaintiff, prayed the Court to seal the mouth of the Plaintiff to enable him get the necessary processes from the Defendant to effectively continue the cross examination of the Plaintiff, which prayer the Court granted.

On the next adjourned date, both the Defendant and her Lawyer did not attend Court notwithstanding their knowledge of the continuation of the hearing as Counsel for the Defendant was in Court during the previous sitting.

Considering that neither the Defendant nor her Lawyer attended Court for the continuation of the hearing despite notice of same to them, the Court discharged the Plaintiff who was under cross examination from the witness box; and the matter was adjourned for judgment.

A party has himself to blame for failing to attend Court. In the case of ***Republic v. Court of Appeal, Accra Ex Parte East Dadekotopon Development Trust, Civil Motion No J5/39/2015, dated 30th July 2015, SC unreported,*** it was held that**:**

> *"There could not be a breach of the rules of the audi alteram partem rule, when it is clear from the facts that sufficient opportunity was given to a party and was abused by him".*

Adinyira JSC also in the case of ***Nana Ampofo Kyei Barfour v. Justmoh Construction Co. Ltd. & Others [2017] 113 G.M.J. 118 at pages 128-129*** restated the principle in these words**:**

"In the plethora of cases cited by Counsel for the Plaintiff for example, Republic v. High Court (Fast Track Division) Accra; Ex parte State Housing Co. Ltd. (No. 2) (Koranten-Amoako Interested Party) [2009] SCGLR 185; Republic v. High Court (Human Rights Division) Accra, Ex parte Akita (Mancell-Egala & Attorney-General – Interested Parties) [2010] SCGLR 374 at page 379; where the Supreme Court held the principle of the audi alteram partem rule was inapplicable; it was clearly evident, on the face of the record that the party complaining of a breach of his/her right to be heard, was present in Court on the day the case was adjourned for hearing or was served with hearing notice but chose not to be present either by himself or Counsel to be heard on the due date."

Order 14 rule 1 of the High Court (Civil Procedure) Rules, 2004 (C.I. 47), provides that:

"Where in an action a Defendant has been served with a Statement of Claim and has filed appearance, the Plaintiff may on notice apply to the Court for judgment against the Defendant on the ground that the Defendant has no defence to a claim included in the writ, or to a particular part of such a claim, or that the Defendant has no defence to such a claim or part of a claim, except as to the amount of any damages claimed"

Relying on the above authorities, the Court proceeded to hear the case of the Plaintiff in relation to her claim for damages in the absence of the Defendant after the Defendant's Lawyer appeared in Court to commence cross examination of the Plaintiff and subsequently failed to be in Court to continue the cross examination. Also, the Defendant who ought to have had notice of the continuation of the hearing (because her Lawyer was in Court upon her instruction) failed to attend Court for the said business.

THE CASE OF THE PLAINTIFF

The Plaintiff testified through her Witness Statement that she was the owner of a 2005 Toyota Echo with registration number GT-187-12. That in June 2019, the Defendant requested to rent the said vehicle which request she accepted. According to the Plaintiff, the parties later discussed via WhatsApp and agreed on a monthly amount for renting the vehicle and the penalty to be paid in the event of a delay in payment of the monthly amount. That they also agreed to reduce their conclusions into writing and this led to the execution of an agreement described as Lease Agreement dated July 1, 2019 ("the Agreement") between the parties. The Plaintiff tendered in evidence a copy of the said agreement as 'exhibit A'.

The Plaintiff continued that the agreement took effect on July 1, 2019 and the Defendant was to fulfill various obligations under the Contract including payment of GHS 21,600.00 as monthly amount outstanding among others. That the Defendant failed to fulfil her obligations and this led to the filing of this suit against her.

The Plaintiff further testified that on September 30, 2024, the Honourable Court granted her Summary Judgment wherein the Defendant was to pay the total sum of GHS 102,480.00 as principal sum and also pay interest at the prevailing commercial bank interest rate.

That she has persuaded the Defendant to pay up her money since 2019 and she kept promising that she will pay but never delivered on her promises.

That the Defendant's attitude and persistent failure to pay up the sum had a toll on the relationship and trust she reposed in her as friend; and that this made her emotionally injured and traumatized. That the frustrations were overwhelming to the extent that she had had to engage a third party to trace the vehicle for her when the Defendant refused to show her the whereabouts of the vehicle.

That she felt completely betrayed knowing very well that she had trusted the Defendant as a friend who she had to give a vehicle she toiled as a young lady to buy.

According to the Plaintiff, all the frustrations and emotional stress she experienced was because of the Defendant's failed promises and mistrust since 2019 through to 2023. The Plaintiff tendered exhibit 'B' series' being copies of WhatsApp chats between the parties to the effect that she went through mental stress and emotional pain.

The Plaintiff testified further that she does not think any amount will be sufficient enough to compensate her for all the stress and pain the Defendant has caused her. That in view of general rate of inflation of goods and services, the loss of value of her vehicle, an amount of GHS 60,000.00 would be reasonable compensation for Defendant's breach of contract.

She also prays the Court to grant her the amount of GHS 45,000.00 as compensation, aggravated and punitive in nature, against the Defendant for the extent of emotional stress, mistrust, and pain and for all efforts deployed in tracing the vehicle when the Defendant refused to show her where she kept the vehicle. She claimed against the Defendant, the reliefs endorsed on the Writ of Summons.

LEGAL ISSUES

The legal issues to *be determined by this Court are:*

1. *Whether or not the Plaintiff is entitled to an order for damages in the sum of GHS 70,000.00 for unlawful detention of the vehicle from January 2, 2020, to October 31, 2021.*
2. *Whether or not the Plaintiff is entitled to an order for aggravated damages in the sum of GHS 45,000.00 for psychological and emotional distress, and efforts employed at tracing the vehicle.*
3. *Whether or not the Plaintiff is entitled to an order for general damages for breach of contract.*

BURDEN AND STANDARD OF PROOF

In civil cases, the general rule is that the party who in his pleadings raises an issue essential to the success of his case assumes the onus of proof. See Sections 10, 11(1) and (4) and 12(1) and (2) of the Evidence Act, 1975 (NRCD 323).

Section 12(1) of the Evidence Act, 1975 (NRCD 323), provides that:

"except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of probabilities."

In the case of ***Adwubeng v. Domfe [1996-97] SCGLR 660,*** the Supreme Court held thus:

> *"Sections 11(4) and 12 of the Evidence Decree, 1975 (NRCD 323) … have clearly provided that the standard of proof in all civil actions was proof by preponderance of probabilities – no exceptions were made."*

Section 11(4) of the Evidence Act explains the burden of proof in civil cases as follows:

> *"In other circumstances, the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence, a reasonable mind could conclude that the existence of the fact was more probable than its non-existence".*

In the case of ***Ackah v. Pergah Transport Ltd & Ors*** **[2010] SCGLR 728** the Supreme Court held *inter alia* as follows:

> *"It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and*

things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the Court or tribunal of fact such as a jury…"

ANALYSIS

Considering that all the three issues above bother on claim of damages by the Plaintiff, they shall be addressed together.

In her reliefs for damages, the Plaintiff is claiming damages of GHS 70,000.00 for unlawful detention of the said vehicle from January 2, 2020, to October 31, 2021. Moreover, in her evidence on record, the Plaintiff testified that in view of general rate of inflation of goods and services, the loss of value of her vehicle, an amount of GHS 60,000.00 would be reasonable compensation for Defendant's breach of contract.

As stated earlier in this judgment summary judgment has been entered in favour of the Plaintiff against the Defendant on her claim for liquidated sums including an order for recovery of GHS 21,600.00 being total monthly car rental fees due and payable to the Plaintiff from August 2019 to October 2021; an order for recovery of GHS 2,160.00 being the accrued penalty for delay payment of monthly car rental fees due and payable to the Plaintiff from August 2019 to October 2021; as well as interest on these principal amounts at the prevailing commercial bank rate.

From the above the Plaintiff has judgment in her favour for the payment of rental fees of the said vehicle from August 2019 to October 2021 together with payment of penalty for delay in payment of the rental fees.

From the reliefs of the Plaintiff and the evidence adduced by the Plaintiff, she is further claiming for damages for loss of the value of her vehicle. The Plaintiff is also claiming for aggravated damages of GHS 45,000.00 for psychological and emotional distress, and efforts employed at tracing the vehicle; and an order for general damages for breach of contract.

In support of her claim for damages, the Plaintiff testified that she had to engage a third party to trace the vehicle for her when the Defendant refused to show her the whereabouts of the vehicle. However, there is no evidence to substantiate the engagement of a third party by the Plaintiff, who traced the said vehicle and the cost incurred by the Plaintiff when she allegedly engaged the said third party. The rule on evidence is clear that he who alleges bears the onus of proof but the Plaintiff could not discharge this burden of proof when she made the said assertion.

The Plaintiff also testified that she felt completely betrayed knowing very well that she had trusted the Defendant as a friend who she had to give a vehicle she toiled as a young lady to buy. That all the frustrations and emotional stress she experienced was because of the Defendant's failed promises and mistrust since 2019 through to 2023. Exhibit 'B' series' are copies of WhatsApp chats between the Plaintiff and the Defendant and the Plaintiff tendered same as evidence of mental stress and emotional pain she went through as a result of the Defendant's failure to comply with the terms of their agreement.
A careful perusal of exhibit 'B' series indicates that the Plaintiff repeatedly demanded from the Defendant to pay her money and return her car, to which the Defendant replied she was working on it and doing her best to pay the money. From exhibit 'B' series the Defendant kept giving excuses as to why the payment had delayed. That is sufficient evidence of breach of the contract the Defendant had with the Plaintiff in exhibit 'A'.

From the evidence on record the Plaintiff did not adduce sufficient evidence on her claim of aggravated damages of GHS 45,000.00 for psychological and emotional distress, and efforts employed at tracing the vehicle. This is because there is no evidence on record to establish how the Defendant's breach of contract specifically affected the Plaintiff psychologically and emotionally and to what degree the Plaintiff was affected. There is also no evidence on record to prove the efforts employed by the Plaintiff to trace the said vehicle through a third party.
In view of the absence of evidence to establish the claim of aggravated damages by the Plaintiff, the Court is unable to grant the said relief of the Plaintiff.

The law is that, when there is a breach of contract, the injured party should be placed in the position he would have been in had the contract not been breached or had it been performed. In ***Juxon-Smith v. KLM Dutch Airlines [2005-2006] SCGLR 438***, the Supreme Court held that where a party has sustained a loss by reason of a breach of contract, he was, so far as money could do it, to be placed in the same situation with respect to damages, as if the contract had been performed.

The Plaintiff has also claimed for general damages and general damages are those which the law presumes as flowing naturally from the breach. A breach of contract occurs due to the action or inactions of the other party. Damages are the normal remedy for a contracting party who suffers as a result of a breach of contract by the other party. General damages need not be proved with evidence since it stems naturally from the breach.

In the case of ***Eastern Alloys Company Ltd v. Chicano Gold Mines (J4/48/2016) [2017] GHASC 5***, the Court found that damages is a method by which Courts offer monetary reparation to persons whose rights in contract law has been violated, as a means to restore them to the situation in which they would have been but for the violation. The Court

found that in order to succeed with a claim for damages the Plaintiff must satisfy the Court with credible proof that there has been a breach, giving rise to the cause of action.

Also, in the case of ***Delmas Agency Ghana Limited v. Food Distributors International Limited* [2007-2008] SCGLR 748**, the Supreme Court held that an award of general damages is such as the law would presume to be the natural or probable consequence of the Defendant's act. It arises by inference of the law and therefore need not be proved by evidence. The law implies general damages in every infringement of an absolute right.

From exhibit 'A', it can be gleaned that the parties had an agreement and the evidence on record indicates that the Defendant breached the said agreement by failing to pay for the rental fees after renting the said vehicle.

From the pieces of evidence on record, it is not in issue that the contract between the Plaintiff and the Defendant, was breached by the Defendant as she did not comply with the terms of payment of the rent of the vehicle. The demand for payment and the vehicle by the Plaintiff indicates how the Plaintiff was unsatisfied as a result of the breach of contract by the Defendant, but it does not establish the claim for aggravated damages of GHS 45,000.00 for psychological and emotional stress as explained above. There is not cogent evidence to that effect.

Applying the above principles to the facts of the present case, since it has been established from the evidence on record that there was a binding agreement between the Plaintiff and the Defendant on the vehicle rental as the Plaintiff has been able to prove that through exhibit 'A' and same was breached as a result of the Defendant's failure to comply with the terms of the said agreement, the Plaintiff will be entitled to general damages for breach of contract.

It can further be gleaned from exhibit 'B' that the Defendant kept the said vehicle by virtue of the fact that she rented the vehicle and kept it without making payments for rent to the Plaintiff, thereby causing the Plaintiff losses as she could not get the said vehicle to use or rent same to. However, the reasonable question is that, is the damages for unlawful detention of a car different from paying rent for the period that the car was unlawfully detained as well as further paying penalty on the late payment of the said rent; and in addition to payment of interest on the rent and penalty? In the view of this Court, it is not so.

The reason behind the order for payment of rent of the vehicle with interest and penalty of late payment of the said rent also with interest is because the Defendant kept the car therefore for the period the vehicle was with the Defendant being from August 2019 to October 2021, there is a judgment on that, in favour of the Plaintiff for the recovery of payment of rent of the vehicle together with payment of accrued penalty for delay in payment, as agreed by the parties in exhibit 'A' plus interest on these amounts being the rent and the penalty thereon.

In view of the above, this Court is of the candid opinion that once the above orders in the summary judgment entered in favour of the Plaintiff against the Defendant on this same vehicle are in force, same should be enough for the Plaintiff to recover whatever losses she incurred as a result of Defendant keeping the said vehicle. This is because granting an order for damages for unlawful detention in addition to the earlier orders in the summary judgment where the Defendant is to pay rent of the vehicle with interest as well as penalty for late payment of the rent, with interest, for the same period the same vehicle was with the Defendant will amount to unjust enrichment in favour of the Plaintiff.
Thus, from the assessment of this Court, it will be unfair and unjust to grant the Plaintiff further order for damages of GHS 70,000.00 for the unlawful detention of the vehicle from

January 2020 to October 2021 when Defendant has already been ordered to pay for the rent and penalty for late payment of rent and interest thereon from August 2019 to October 2021 for keeping the said vehicle.

That will amount to double payment by the Defendant for keeping the vehicle unlawfully which resulted in the loss of its value for the Plaintiff.

CONCLUSION

After a careful analysis and assessment of the evidence adduced by the Plaintiff; and further relying on the authorities above, I find that the Plaintiff has been able to lead sufficient evidence in support of her claim for general damages.

However, the Plaintiff could not adduce cogent evidence to establish her claim for aggravated damages and also for the reasoning of the Court as stated above, the Court is unable to grant an order for damages for unlawful detention of the said vehicle.

Consequently, I do hereby find that the Plaintiff is entitled to general damages against the Defendant for breach of contract, considering that the Plaintiff already has summary judgment in her favour on her first five reliefs against the Defendant.

Accordingly, I hereby enter final judgment in favour of the Plaintiff as against the Defendant as follows:

- General damages of GHS30,000.00 is awarded against the Defendant in favour of the Plaintiff for breach of contract.

COST

- The Court has received oral submissions from Counsel for the Plaintiff; and the Defendant legally unpresented. In assessing costs, *Order 74 of the High Court (Civil Procedure) Rules, 2004 (C.I 47)* provides a useful guidance on the factors to consider

in awarding costs. Therefore, to compensate the Plaintiff for expenses reasonably incurred in the suit in terms of filing fees and to provide reasonable remuneration of the Lawyer for the Plaintiff for work done, the travel expenses to Court, the nature of the case, the delay in the proceedings and the duration of the trial and the fact that a cost of GHS3,000.00 had earlier been awarded for the Plaintiff against the Defendant, I will award costs GHS12,000.00 in favour of the Plaintiff against the Defendant.

[SGD.]

H/H AKOSUA A. ADJEPONG (MRS)

(CIRCUIT COURT JUDGE)